

Court No. - 3

Case :- WRIT - C No. - 13807 of 2022

Petitioner :- Sarvesh Singh Rathore

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Akhil Kumar Shukla

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Chandra Kumar Rai,J.

Heard Sri Akhil Kumar Shukla, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Madan Mohan Chaurasia, learned counsel for the respondent No.3.

This writ petition has been filed praying for the following relief:

"Issue a writ, order or direction, in the nature of mandamus commanding the respondent no.3 to decide the objection of the petitioner dated 16.4.2022 against the forged and fabricated Power Connection No.605/4107/065282 and its consequential action by passing a speaking and reasoned order within stipulated period as fixed by this Hon'ble Court."

Learned counsel for the petitioner submits that the petitioner has filed an objection dated 16.4.2022 (Annexure-2 to the writ petition), followed by a reminder dated 5.5.2022, yet respondent no.3 has not decided the objection.

Sri Madan Mohan Chaurasia, learned counsel for the respondent No.3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within six weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the

petitioner.

For a period of ten weeks or till disposal of the objection of the petitioner, whichever is earlier, the impugned recovery proceedings against the petitioner, shall be kept in abeyance.

Order Date :- 25.7.2022

C.Prakash